

EXHIBIT Q

RT 10, pp. 49-52 (closing argument)

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: RT Day 10

1 THE COURT: You will have rebuttal,
2 10 minutes.

3 MR. ROSARIO: Thank you.

4 THE COURT: All right. Let's take our break.
5 All right. Let's be back here at 11:10 for
6 argument. Remember not to form or express any
7 opinions about this case, thank you.

8 (Short recess).

9 THE CLERK: Please come to order. Department
10 504 is back in session.

11 (Whereupon, the Jury entered the courtroom).

12 THE COURT: All right. We are back in
13 session in the matter of Rosario versus Abdelhalim.

14 The record should reflect all jurors are
15 present, all parties are present with Counsel.

16 And, Miss Navaratnasingham, would you like to
17 give your closing argument, please?

18 MS. NAVARATNASINGHAM: Yes. Thank you,
19 Your Honor.

20

21 CLOSING ARGUMENTS

22 MS. NAVARATNASINGHAM: Good morning.
23 Mr. Rosario started this case, and again, today,
24 reiterated the importance of candor and how people
25 shouldn't change their stories. However, as you've
26 seen from the evidence, it is Mr. Rosario who has not
27 been candid.

28 It is Mr. Rosario who has changed his story.

1 First he claims that he was pushing or kick
2 scooting an inoperable Lime scooter.

3 You saw from his complaint that was filed
4 four years ago and from discovery responses that were
5 served in December of 2021 --

6 MR. ROSARIO: Objection hearsay.

7 THE COURT: Overruled.

8 MS. NAVARATNASINGHAM: -- that Mr. Rosario
9 admits to riding a Lime scooter.

10 In fact, you saw on body cam footage where
11 Mr. Rosario himself told officers that: I was riding
12 a Lime scooter going five to ten miles per hour.

13 It has been four years and there has not been
14 any changes made to Mr. Rosario's complaint where he
15 admits to riding a Lime scooter.

16 Why does Mr. Rosario need to change his
17 story?

18 He needs you to believe that he was --

19 MR. ROSARIO: Objection, speculation.

20 THE COURT: Overruled. This is improper,
21 sir.

22 MR. ROSARIO: Oh, what she is doing or what I
23 am doing?

24 THE COURT: What you are doing.

25 MR. ROSARIO: Okay.

26 THE COURT: If you believe she misstates the
27 evidence, you may raise an objection, as she did with
28 you.

1 MR. ROSARIO: Or speculation.

2 THE COURT: Speculation, you can make
3 whatever objections you believe are appropriate and in
4 good faith; however, you need to allow her to make her
5 statement just as she did with you.

6 MR. ROSARIO: Okay.

7 MS. NAVARATNASINGHAM: Thank you.

8 Why would Mr. Rosario need to change his
9 story?

10 It is because he needs you to believe that he
11 was a pedestrian pushing an inoperable scooter so that
12 he is not in violation of the Vehicle Code.

13 Second, Mr. Rosario told you that he lost
14 consciousness. You saw body cam footage yourself, the
15 first video we showed you where Mr. Rosario very
16 clearly tells officers that he did not lose
17 consciousness.

18 Third, Mr. Rosario tells you that this was a
19 hit and run. He presented a 911 call from an
20 unidentified woman where she says: It might be a hit
21 and run, I don't know.

22 The dispatcher in that same 911 call says:
23 Somebody already called this incident in.

24 The person that already called that incident
25 in was my client.

26 For there to be a hit and run someone must
27 flee the scene.

28 You saw body cam footage and you know that my

1 client made a 911 call. You saw body cam footage of
2 my client at the scene cooperating with police.

3 This is not a hit and run.

4 Fourth, Mr. Rosario references Dustin
5 Roseman.

6 You saw for yourself and you heard
7 Officer Thompson say that she interviewed Mr. Rosemont
8 and that he was very intoxicated and didn't know what
9 happened.

10 Fifth, Mr. Rosario argues that there is a
11 scuff on my client's vehicle.

12 There is absolutely no evidence that that
13 scuff was caused as a result of this incident or that
14 it is related to Mr. Rosario's leather jacket.

15 There is no evidence before you of that. The
16 scuff could have been on my client's vehicle before
17 the incident.

18 Mr. Rosario had an opportunity to produce
19 that photograph to Mr. Fernandez and inquire of him.
20 He didn't do that.

21 He also had an opportunity to show that
22 photograph to my client and ask him about it. He
23 chose not to do that.

24 The only evidence before you is that both
25 Officer Fernandez and my client testified that there
26 was no damage to my client's vehicle as a result of
27 this incident.

28 All of the evidence presented establishes